

Bhikari Lal Pal v. U.P. Power Corporation

Allahabad High Court · Division Bench · 27 May 2010 · Writ - C No. 30451 of 2010 · **Writ disposed; apply for alternative route under clause 4.5(d), to be decided in four weeks.**

HEADNOTE

Clause 4.5(d) of the U.P. Electricity Supply Code, 2005 requires an applicant who cannot obtain a no-objection for drawing lines across another's property to take an alternative route and deposit the additional estimate. A writ seeking release of a tube-well connection blocked by a neighbour's civil suit was disposed of with a direction to apply for that alternative route, to be decided within four weeks.

FACTUAL SUMMARY

Bhikari Lal Pal deposited the full estimated cost of an 11 kV (20 HP) private tube-well connection with U.P. Power Corporation. The connection was not released because the proposed lines had to cross the fields of Ram Sewak, who had filed a civil suit restraining the department from laying electricity lines over his land. Counsel for the Corporation accepted notice. The petitioner asked the High Court to compel grant of the connection despite that obstruction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

alternative route where landowner withholds NOC

HOLDING

Where the applicant cannot obtain a no-objection from the person across whose property the supply line must be drawn, clause 4.5(d) requires the line to be drawn by an alternative route on deposit of the additional estimated amount. The petitioner may obtain a no-objection from Ram Sewak or apply for an alternative route with a fresh estimate; if he so applies with a certified copy of the order, the respondents shall decide the matter within four weeks. The writ is disposed of on that direction, without mandating the original alignment. ¶ [unnumbered](#)